function of the Crown' and '[t]hat territory's interests will not necessarily be the interests of the United Kingdom or of its allies'.[4]

Yet, in Bhagat Singh's case, the interests of Her Majesty's government in London were assumed to be the only interests at stake. They were of paramount importance. The interests of the colonial territory, namely of India, were subsumed into those of the Crown in England. That was a betrayal of the constitutional function of the courts. In the end, even if the law in question is dealing with affairs of 'incontestably the colony', nevertheless 'it is capable of being rendered invalid by jurisdictional error or malpractice'.[5] The following year Lord Bingham confirmed in the House of Lords that a wrongly promulgated colonial law could not be enacted,[6] and Lord Mance said that only the proper governance of the territory could be countenanced as a consideration in a colonial law.[7] This clearly shows Bhagat Singh's conviction to have been unlawfully orchestrated. No wonder the high court in Lahore is seized of an application to set aside the decision, although this can only in the final analysis be of symbolic value.